

Line 5

Case Name: *Shaun Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Shaun Allen Laliberte (“Plaintiff”) moves under Code of Civil Procedure Sections 2023.010 *et seq.*, 2033.010 *et seq.*, 2023.030 *et seq.*, and 2033.280 *et seq.* to deem Plaintiff’s Requests for Admissions, Set One (the “RFAs”) admitted by Defendant F.S. Trucking Company, Inc., and for sanctions for Plaintiff’s reasonable attorneys’ fees and costs for this Motion to be imposed in the amount of \$2,000.00 against Defendant F.S. Trucking Company, Inc. Notice of Motion (the “Motion”) at 2:4-16 (filed: Feb. 19, 2026). In the alternative to a ruling that Defendant has admitted the RFAs, Plaintiff requests a ruling that because Defendant failed to serve a timely responses to these RFAs Defendant has waived any objections to these RFAs. Motion at 5:1-8

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Chronology

Plaintiff served the Requests for Admissions, Set One, on Defendant F.S. Trucking Company, Inc., on November 25, 2025. Declaration of attorney Anahi Gonzalez In Support of Motion (“Gonzalez Decl.”) at ¶ 5 & Exhibit A thereto.

Defendant’s responses were due on December 29, 2025. Gonzales Decl. ¶ 6. This timing point is important here: under Code of Civil Procedure Section 2033.250, “[w]ithin 30 days after serve of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requested party[.]” C.C.P. § 2033.250(a). So here if Defendant failed to serve a response to these RFAs by December 29, 2025, then Defendant would have failed to serve a *timely* response to these RFAs.

Plaintiff filed this Motion on February 19, 2026. Plaintiff asserts that as February 19, 2026 when Plaintiff filed this motion that Defendant F.S. Trucking Company, Inc., did not respond to these RFAs despite its obligation to respond under Code of Civil Procedure Section 2033.240. Gonzalez Decl. at ¶ 7.

Because Defendant failed to serve a timely response to these RFAs by December 29, 2025, Plaintiff moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Motion at 3:21-4:24.

In the alternative, Plaintiff requests an Order that because Defendant has failed to serve a timely response to these RFAs, Defendant has waived all objections to these RFAs. Motion at 5:1-8.

Moreover, for Plaintiff's misuse of the discovery process under Code of Civil Procedure Section 2023.010(d) by failing to serve a timely response to these RFAs by December 29, 2025, Plaintiff moves for a monetary sanction against Defendant F.S. Trucking Company, Inc., of \$2,000.00 under Code of Civil Procedure Sections 2023.030 for Plaintiff's reasonable attorneys' fees and costs for bringing this Motion. C.C.P. § 2023.030. Motion at 6:11-24.

In its Opposition brief, Defendant F.S. Trucking Company, Inc., asks the Court to deny the Motion as "moot" because Defendant F.S. Trucking Company, Inc., asserts that it did serve a verified responses to these RFA *on February 6, 2026*. Opposition at 2:22-4:3 & Declaration of attorney Chandrani Mandal in support of Opposition ("Mandal Decl.") at ¶ 6 ("Verified discovery responses were served on February 6, 2026 via electronic service.").

In its Reply brief, Plaintiff asserts that "Defendant is lying and falsely claiming that it served discovery responses on February 6, 2026." Reply at 2:6-7. In support of Plaintiff's position that it is factually incorrect that Defendant served verified responses to the RFAs on February 6, 2026, Plaintiff argues that the following points undermine Defendant's position that Defendant served verified responses on February 6, 2026:

- On February 10, 2026, four days after the date Defendant now claims it served it responses, Defendant emailed Plaintiff's counsel requesting an extension of time to serve its discovery response. Reply at 2:23-24; Supp. Gonzalez Decl. at ¶ 5.
- Plaintiff asserts that upon downloading the responses claimed by Defendant to have been sent in a February 6, 2026 email, "the metadata shows that the documents were created on February 23, 2026, and modified on August 19, 2026" (Reply at 6:4-6 & Supplemental Gonzalez Decl. at ¶ 15)—and August 19, 2026 is the same date that "defense counsel 'forwarded' an email that defense counsel represented as the February 6, 2026 email serving discovery responses." Reply 3:22-23; Supp. Gonzalez Decl. at ¶ 4.

Carefully reviewing the exhibits to the Plaintiff's Reply brief, the Court sees that on August 17, 2026 shortly after Plaintiff's counsel reviewed Defendant's Opposition brief, Plaintiff counsel wrote an email to Defense counsel stating that Plaintiff's counsel "do[es] not have any record of receiving . . . your client's discovery responses on February 6, 2026[.] Please send us the emails reflecting service of the discovery responses[.]" Supp. Gonzalez Decl., Ex. 4. To which Defense counsel replied on August 19, 2026 by forwarding an email from Defense counsel dated February 6, 2026 attaching Defendant's discovery responses to the RFAs. Supp. Gonzalez Decl., Ex. 6. It is that February 6, 2026 email that Plaintiff's counsel now says is "fabricated." Reply at 3:24.

II. Governing Law

In this Motion brought under Code of Civil Procedure Section 2033.280, the Court finds that plain statutory text of Section 2033.280 to be controlling (and quite helpful) to decide this Motion. Section 2033.280 provides, in pertinent part:

“If a party to whom requests for admission are directed *fails to serve a timely response*, the following rules apply

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product. . . . The Court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:
 - 1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.
 - 2) The parties failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.³
- (b) The requesting party may move for *an order* that . . . the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).
- (c) The court shall make *this order*, *unless* it finds that the party to whom the requests for admission have been directed has been served, *before the hearing on the motion*, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. [But] [i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose *failure to serve a timely response* to requests for admission necessitated this motion.

C.C.P. § 2033.280 (emphasis added).

In light of the plain text of Section 2033.280(c), even if Defendant here served its responses by February 6, 2026, the Court retains authority and indeed “it is mandatory” for the Court to impose a reasonable sanction against Defendant here if the Court finds that Defendant “fail[ed]” to serve a timely response” to these RFAs. *Id.* And under Code of Civil Procedure Section 2023.030(a) (which Section 2033.280(c) expressly authorizes the Court to apply in this circumstance): “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney

³ As put by the Court of Appeal: “A party that fails to serve a timely response to the discovery request waives ‘any objection’ to the request, ‘including one based on privilege’ or the protection of the attorney work product.” *Sinaiko Healthcare Consulting, Inv. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 403.

advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And, lest there be any doubt, the Court reads Section 2023.010(d) to mean that failing to *timely* "respond . . . to an authorized method of discovery" like RFAs is a "misuse of the discovery process" (C.C.P. § 2023.010(d)) subject to a reasonable sanction under Section 2023.030(a).

III. Analysis of the Motion

Because these RFAs were served on Defendant on November 25, 2025, Defendant had the affirmative obligation to provide verified Code-Complaint responses to them by December 29, 2025. C.C.P. 2033.210-250. Based on its careful review of all the papers filed in connection with this Motion and the record, the Court finds that Defendant failed to serve verified Code-Complaint responses to these RFAs on Plaintiff by December 29, 2025. Hence, the Court finds that Defendant failed to serve timely a response to these RFAs.

On the issue of whether Defendant served a response to these RFAs that was substantially Code-Compliant after December 29, 2025 but before the date of this hearing on this Motion on August 28, 2026, the parties sharply disagree.

Defendant's attorney declares under oath that Defendant did serve verified responses to these RFAs by email on February 6, 2026. Mandal Decl. at ¶ 6 And indeed, Exhibit 6 to Plaintiff's Reply brief is a February 6, 2026 email from defense attorney Mandal to Plaintiff's counsel attaching responses to these RFAs. Supp. Gonzalez Decl., Ex. 6.

Plaintiff's attorney retorts that the February 6, 2026 service email is a "fabrication," pointing to a subsequent February 10, 2026 email from defense counsel asking for an extension to respond (Supp. Gonzalez Decl. at ¶ 5) and to metadata showing that the responses to the RFAs were "modified on August 19, 2026" (Supplemental Gonzalez Decl. at ¶ 15), the same date that defense counsel forwarded the February 6, 2026 service email to Plaintiff's counsel (as Plaintiff's counsel requested two days earlier). Supp. Gonzalez Decl. at ¶ 4.

After carefully reviewing all the evidence and arguments, Plaintiff has not convinced the Court that the February 6, 2026 service email attaching Defendant's responses to these RFAs is fake. Plaintiff's proffered evidence is inconclusive on this point, e.g., the metadata that the document was "modified" on August 19, 2026 might have been generated by counsel opening the document on August 19, 2026. So after reviewing all the evidence on this point, the Court, in the broad exercise of its discretion, finds for purposes of this Motion that Defendant did serve its verified responses to these

RFAs on February 6, 2026, which were in substantial compliance with Section 2033.220.⁴

In summary, the Court makes the following two factual findings for purposes of resolving this Motion:

- 1) Defendant failed to serve a timely response to these RFAs when it failed to serve a response to them by December 29, 2025.
- 2) After December 29, 2025, but before the date of this hearing on this Motion of August 28, 2026, Defendant did serve on February 6, 2026 a response to these RFAs that, while untimely, was verified and in substantial compliance with Section 2033.220.

By the plain text of Section 2033.280 by which Plaintiff brings this Motion, those two factual findings result in several rulings:

First Ruling: Regarding an order deeming the truth of all matters specified in the RFAs to be admitted, by the plain text of Section 2033.280(b) & (c) read together, because Defendant did on February 6, 2026 (before this August 28, 2026 hearing) serve a verified response to these RFAs that is substantially Code-Compliant, this Court **DENIES** Plaintiff's request for an Order deeming Defendant to have admitted the truth of any matters specified in this RFAs. In other words, the Court does *not* deem the truth of any matters specified in these RFAs to be admitted by Defendant. Hence, Defendant's substantive answers in these RFAs—e.g., “Deny”—in Defendant's February 6, 2026 Responses stand.

Second Ruling: Regarding Plaintiff's request for the Court to order that all objections in Defendant's responses have been waived, by the plain text of Section 2033.280(a), because Defendant here failed to serve a timely response to these RFAs, the Court now rules and **ORDERS** that all objections to these RFAs, including based on privilege or work product protection, made by Defendant in its untimely February 6, 2026 responses are hereby **WAIVED**.

While Defendant does satisfy the first statutory exception to Section 2033.280(a) by having subsequently served a response that is substantially Code-Complaint (*see* C.C.P. § 2033.280(a)(1)), Defendant has failed to establish that Defendant's failure to serve a timely response by December 29, 2025 was the result of mistake, inadvertence, or excusable neglect. And lest there be any doubt, the Court in the broad exercise of its discretion in reviewing all the papers in connection with this Motion and the records now finds that Defendant's failure to serve a timely response here was *not* the result of mistake inadvertence, or excusable neglect. Hence, all objections in its untimely February 6, 2026 responses are waived.

⁴ This finding is without prejudice in the sense that Plaintiff will be free at trial when cross-examining Defendant's witnesses to ask questions about whether this February 6, 2026 service email and its attached responses to these RFAs was fabricated or not..

And the practical effect of the First Ruling and Second Ruling is this: While the evidentiary objections in those responses are waived, Defendant's answers Denying matters involved in the RFA (or specifying so much of the matter as to the truth of which Defendant lacks sufficient information or knowledge) in its February 6, 2026 responses remain in full force.

Third Ruling: Regarding sanctions, by the plain text of Section 2033.280(c) regarding sanctions, because the Court finds that Defendant's failure to serve a timely response to the RFAs necessitated this Motion, it is mandatory for the Court to impose a reasonable monetary sanction on Defendant here. Specifically, for Plaintiff's misuse of the discovery process under Section 2023.010(d) by failing to serve a timely response to these RFAs by December 29, 2025, Plaintiff moves here for a monetary sanction against Defendant F.S. Trucking Company, Inc., of \$2,000.00 under Sections 2023.030 for Plaintiff's reasonable attorneys' fees and costs for bringing this Motion. C.C.P. § 2023.030.

Plaintiff's request in this Motion for a \$2,000.00 sanction is well supported by the attorney hourly rates and number of attorney hours spent on this Motion, which are well detailed in the Gonzalez Declaration at ¶¶12, 13, and 14, and which the Court in the broad exercise of its discretion now finds are reasonable in all respects.⁵ So Defendant F.S. Trucking Company, Inc., is **ORDERED** to pay Plaintiff \$2,000.00 as a sanction within 30 days from today.

IV. Conclusion & Order

Accordingly, based on the factual findings and for the reasons explained above, the Court **GRANTS IN PART and DENIES IN PART Plaintiff's Motion**. Specifically, it is hereby **ORDERED** that:

- 1. The Court DENIES the Motion's request for an Order that the truth of all matters specified in these RFAs are deemed admitted. Defendant's substantive answers (e.g., "Deny") to these RFAs as set forth in its untimely responses served on February 6, 2026 stand.**
- 2. The Court GRANTS the Motion's request that all Defendant's objections to these RFAs, including based on privilege or work product protection, as set forth in its untimely responses served on**

⁵ Specifically, the Gonzalez Declaration establishes that Plaintiff as of the filing of the Motion spent 5.75 hours of attorney time at an hourly rate of \$450.00, plus a filing fee for this Motion of \$60.00, for total fees and costs of \$2,647.50. Gonzalez Decl. at ¶¶12-14. While Plaintiff's total fees and costs for this Motion are \$2,647.50, Plaintiff seeks only \$2,000.00 as a sanction here. In the exercise of its discretion, the Court finds the hourly rate \$450.00 sought is reasonable in light of the relevant market, the number of hours sought is reasonable in light of the work spent on this Motion, and the total amount sought of \$2,000.00 is reasonable.

February 6, 2026, are WAIVED.

And

- 3. The Court GRANTS the Motion's request for sanctions. Within 30 days from today, Defendant F.S. Trucking Company, Inc., will pay \$2,000.00 to Plaintiff Shaun Allen Laliberte as a monetary sanction for Plaintiff's reasonable attorneys' fees incurred for this Motion.**

Moreover, Defendant F.S. Trucking Company, Inc., is put on **NOTICE** that failure to comply with this Order in all respects within 30 days from today may subject Defendant F.S. Trucking Company, Inc., to further escalating monetary and non-monetary sanctions including, but not limited to, issue, evidentiary, and terminating sanctions.⁶

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

⁶ Moreover, regardless of whether any party contests this ruling, counsel for all parties in this case are **ORDERED TO APPEAR IN PERSON** at this August 26, 2026 hearing to discuss with the Court how from this point forward in this case they all *will* follow the provisions of Santa Clara County Bar Association ("SCCBA") Code of Professionalism, including but not limited to on Discovery (Section 10) and Motion Practice (Section 11) or else they *and* their clients will experience an array of sanctions imposed by the Undersigned Judge. *See* Standing Order of Santa Clara County Superior Court Re SCCBA Code of Professionalism (filed: March 28, 2023) (authorizing Judges to apply this Code of Professionalism to adjudicate discovery disputes). Lest there be the slightest doubt in their minds, their compliance with the SCCBA Code of Professionalism when practicing in this Department 16 is not aspirational but mandatory.

Line 6

Case Name: *Wells Fargo Bank, N.A. v. Yvonne Trigos*

Case No.: 25CV465609

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Section 2033.280(b) to deem Plaintiff’s Requests for Admission, Set One (the “RFAs”) admitted by Defendant Yvonne Trigos (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed: Jan. 23, 2026).

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on November 12, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite her obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 2:4-7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on November 12, 2025, is deemed admitted by Defendant Yvonne Trigos.**